

proving by a preponderance of the evidence, any fact necessary to the defense.” (*Rosenthal, supra*, 14 Cal.4th at p. 413.) “In these summary proceedings, the trial court sits as a trier of fact, weighing all the affidavits, declarations, and other documentary evidence, as well as oral testimony received at the court's discretion, to reach a final determination.” (*Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951, 972 *citing Rosenthal, supra*, 14 Cal.4th at p. 413.)

In determining whether or not Danan waived his right to arbitrate, the court considered that the parties specifically agreed by contract that “[a]rbitration may be requested any time, even where there is a pending lawsuit, unless a trial has begun or a final judgment entered. Neither you nor we waive the right to arbitrate by filing or serving a complaint, answer, counterclaim, motion, or discovery in a court lawsuit. To choose arbitration, a party may file a motion to compel arbitration in a pending matter and/or commence arbitration by submitting the required AAA forms and requisite filing fees to the AAA.” In light of this contractual agreement, the court finds that Defendant has not waived his right to arbitration and **GRANTS** the motion to compel Calvary to arbitrate its claims. Plaintiff must initiate the arbitration proceedings with AAA, including paying any of the related filing fees required, within 30 days of this court’s order. Just as the contract provides that Danan can move for arbitration at any time, it also provides that since this action is for the collection of a debt, he is responsible to pay his share of the filing fees.

In addition, the court stays these proceedings pending Danan’s timely election to pursue arbitration of this dispute pursuant to the terms of this court’s order.

4.

CASE #	CASE NAME	HEARING NAME
CVME2604114	EVERGREEN BANK GROUP VS PITTMAN	HEARING ON NOTICE OF APPLICATION FOR WRIT OF POSSESSION

Tentative Ruling: Application unopposed.

Application **GRANTED**. Court to sign the Order for Writ of Possession.